



POLICE DEPARTMENT

February 19, 2026

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202409326 (Incident Date: August 31, 2024) regarding Police Officer Melissa Marquez, Tax No. 972768 (PODS Case No. C-036260), and Police Officer Ismael Reyeslopez, Tax No. 972897 (PODS Case No. C-036261)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officers Marquez and Reyeslopez and has determined that no disciplinary action is warranted.

In this matter, Police Officer Marquez and Reyeslopez responded to a 911 call of a vicious dog that had just killed two other dogs. Police Officer Marquez and Reyeslopez were assigned to maintain the outer perimeter, to prevent civilians from entering the scene. Police Officer Reyeslopez stated the street was closed off, due to the danger the dog posed. As the officers were maintaining the outer perimeter, the complainant approached Police Officer Reyeslopez multiple times and attempted to enter the closed street, stating she lived in that direction. Police Officer Reyeslopez issued several verbal warnings to the complainant not to enter the location. The complainant refused to comply with the verbal directions, which led to Police Officer Reyeslopez to push her back several times, to prevent her from entering the outer perimeter. CCRB concluded that this use of force was reasonable, for the complainants' own safety.

CCRB substantiated one allegation against Police Officer Reyeslopez for an improper threat of force, after a male questioned Police Officer Reyeslopez for pushing a female. After reviewing the body-worn camera footage, and reviewing the totality of the circumstances, it has been determined that issuing discipline would not be in the interests of justice. Police Officer Reyeslopez was in the midst of a highly volatile and stressful encounter, where the complainant would not comply, and attempted to enter a street that was closed off for safety reasons. Police Officer Reyeslopez statements were reasonable given the context of the entire encounter, where the complainant entered the officer's zone of safety numerous times.

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

Additionally, it would not be in the interests of justice to issue discipline to Police Officer Marquez for improper use of force. After reviewing the body-worn camera footage and considering the totality of the circumstances it has been determined that Police Officer Marquez's use of force was reasonable. Police Officer Marquez stated she felt that the complainant made a gesture to "get towards," her, causing her to push the complainant away for her safety.

Therefore, the Police Commissioner directs that Police Officers Marquez and Reyeslopez receive no disciplinary action for the alleged misconduct.

Sincerely,



Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office